



SPONSOR: Rep. Shupe & Sen. Lawson
Rep. Hilovsky; Sen. Sokola

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 102

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO TEACHERS' RETIREMENT AND
DISABILITY PENSIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 39, Title 14 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 3911. Denial of Benefits to Individuals Convicted of Child Sex Abuse.

4 An individual, or survivor, or beneficiary of an individual, who may otherwise be qualified to receive retirement or
5 disability benefits as outlined in this chapter, shall not be permitted to receive these benefits following their conviction of
6 sexual abuse of a student,

7 Benefits are also denied to an individual under indictment for such an offense and willfully remains outside the
8 United States for more than 1 month to avoid prosecution.

SYNOPSIS

This bill denies former teachers retirement and disability benefits if they were convicted of sexual abuse of a student. It also clarifies that benefits will be denied if an individual is under indictment for such an offense and remains outside the United States for more than one month to avoid prosecution.